

stipulated at least two months' notice. In the board's view, R. 71(1) EPC 1973 did not stipulate that the requirement of a two-month period also applied if, subsequent to a duly effected summons, there was an intervention by a third party. As a general principle, an intervener entered the proceedings at the stage they were at on the date of intervention, including pending time limits. Issuing a further summons or adjourning the date in this case was therefore rejected.

3. Legal status of documents filed with intervention during appeal proceedings

3.1. No discretion for the board to admit documents filed with intervention

In T. 1665/16 documents E1 to E20 were filed with an intervention during appeal proceedings. The board considered that documents E1 to E20 had been filed as early as possible, since the intervention was not subject to any time limit other than the requirements under Art. 105 EPC and R. 89(1) EPC. Documents E1 to E20 were thus part of the appeal proceedings, without the Board needing to exercise a discretion or decide on admitting these documents into the proceedings.

3.2. No change of legal status of documents after withdrawal of intervention

In T. 1665/16 documents E1 to E20 were filed with an intervention during appeal proceedings. The intervener subsequently withdrew its intervention. The patent proprietor (respondent) requested that the documents should not be admitted into the proceedings. The board held that the withdrawal had not changed the legal and factual status of documents E1 to E20. The withdrawal of the intervention only terminated the status of the intervener as opponent and party to the proceedings but had no direct procedural consequences for the appeal proceedings, as the original opponent, who had filed a valid appeal, remained a party to the proceedings. The withdrawal of the intervention did not affect the legal validity of procedural acts like the filing of documents or other evidence carried out before the withdrawal. In particular, it did not render the intervention retroactively inadmissible, since it had only the legal effect *ex nunc*. There was no legal basis for regarding documents E1 to E20 as retroactively late filed. Since there was no legal basis in the EPC for the exclusion of documents from opposition proceedings which continued when one of the oppositions was withdrawn, documents E1 to E20 submitted by the opponent/intervener remained in the proceedings and had to be taken into account in the board's decision.

4. Intervention shortly before oral proceedings

In T. 1961/09 the board summarised in the catchword that while an intervention under Art. 105 EPC shortly before oral proceedings in an appeal, raising new issues, will normally require the oral proceedings to be adjourned if not the remittal of the case altogether (G. 1/94, OJ 1994, 787), the oral proceedings may be continued if and so far as this can be done without unfairness to the other parties, in particular the proprietor.

Q. Continuation of the opposition proceedings by the EPO

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R. 84 EPC provides for the continuation of opposition proceedings by the EPO of its own motion. This may happen in the following circumstances: where the patent has lapsed or been surrendered and the opponent requests continuation of the opposition proceedings (R. 84(1) EPC); in the event of the death or legal incapacity of an opponent and where the opposition has been withdrawn (R. 84(2) EPC). In the case of a withdrawal of the opposition during the opposition appeal proceedings, there are a number of procedural consequences which depend on the party status of the opponent and which do not permit the exercise of discretion as to whether or not opposition appeal proceedings are continued (see in this chapter III.Q.3.3.).

1. Surrender and lapse of the patent**1.1. Surrender of patent**

Under the provisions of the EPC 1973, the patent proprietor was unable to terminate the proceedings by informing the EPO of his surrender of the European patent, since this was not provided for in the EPC 1973; at this stage in the proceedings, notices of surrender had to be addressed, as far as national law permitted, to the national authorities of the designated contracting states (T 73/84, OJ 1985, 241; G 1/90, OJ 1991, 275; see T 123/85, OJ 1989, 336 and T 196/91). Under the provisions of the EPC 2000 the patent proprietor may request that the European patent be revoked pursuant to Art. 105a EPC. The existence of this procedure does however not preclude patent proprietors from giving notices of surrender to national authorities.

Neither the surrender of a patent nor its lapse has retroactive effect. Both therefore have to be distinguished from revocation, which takes effect from the outset (Art. 68 EPC).

1.2. Continuation of the opposition proceedings after lapse or surrender (Rule 84(1) EPC)

If a European patent has lapsed or been surrendered in all the designated states, the opposition proceedings may, under R. 84(1) EPC (R. 60(1) EPC 1973), be continued at the request of the opponent, provided the request is filed within two months of a communication from the EPO informing the opponent of the surrender or lapse. R. 84(1) EPC is limited to the situation where the opposed patent has been surrendered or has lapsed during ongoing opposition proceedings. Where the patent had already lapsed prior to the filing of the opposition R. 75 EPC applies, which states that an opposition may be filed even if the opposed patent has been surrendered or has lapsed in all the designated contracting states (T 606/10).

R. 84(1) EPC also applies, pursuant to Art. 111(1) EPC and R. 100(1) EPC, to opposition appeal proceedings, T 2165/08 of 6 March 2013, T 702/15.

Where the European patent expires during ongoing appeal proceedings in all the contracting states and the appellant (opponent) does **not** request continuation of the proceedings, the proceedings are terminated without any decision on the issues (T 329/88, followed by numerous decisions, including T 762/89, T 749/01, T 289/06, T 949/09, T 480/13 and T 977/14).

R. 84(1) EPC establishes no legal obligation on the EPO to ascertain of its own motion the legal status of a European patent and does not apply in the event of an alleged surrender or lapse of a European patent, unless confirmation thereof has been received by the EPO from the appropriate authorities of all the designated contracting states (T 194/88, T 809/96, T 201/04). However, in some exceptional circumstances, the proceedings have been terminated where such evidence was missing. In T 762/89 the respondent (patent proprietor) had submitted that the patent had lapsed following non-payment of the national renewal fees in the designated contracting states (AT, BE, DE, FR, GB, IT, LU, NL und SE). EPO records showed that the European patent had lapsed in 1990 in all the designated contracting states except Italy and Luxembourg, and the respondent provided confirmation that the patent had lapsed in Italy with a letter of 7 January 1992. Since the respondent had expressly declared on a number of occasions that the patent had lapsed in all the designated states, the board held that, with a view to procedural economy, there was no valid reason why the respondent should be required to show that it had lapsed in Luxembourg as well. In T 607/00 the board accepted the respondent's statement, which was not challenged by the appellant, that the patent had lapsed in Italy.

If the appellant (opponent) expressed doubts concerning a respondent's (patent proprietor's) claim that a patent had lapsed or been surrendered, then the lapse had to be registered with the EPO or properly proved. Otherwise, R. 60(1) EPC 1973 was not applicable and the appeal procedure continued (T 194/88, T 682/91, T 833/94, T 201/04).

1.2.1 Request for continuation of the proceedings made by the opponent

In T 1213/97 the patent had expired for all designated contracting states during the opposition appeal proceedings. The appellant (opponent) requested a decision on the state of the file which implied a request for the continuation of the appeal proceedings for the purpose of issuing a decision. The board exercised its power under R. 60(1) EPC 1973 to continue the appeal proceedings.

In T 598/98 too the patent had lapsed for all designated contracting states since a time subsequent to the opponent's filing of the appeal, and the appellant (opponent) had requested continuation of the proceedings. The request was allowed. The board maintained that the opponent's legitimate interest in retroactive revocation was one of the elements that could be a factor in the board's decision to terminate or continue the proceedings under R. 60 EPC 1973. It also stated that the general interest in a central ruling on the patentability of an invention claimed in a patent did at any rate justify continuing the proceedings until a final decision was taken if the case was essentially ready for decision at the time when the patent lapsed and if it also made a significant difference to the patent's fate whether a decision was taken on the merits or the proceedings were simply terminated.

In T 500/12 the board granted the request filed by the appellant (opponent) for continuation of the appeal proceedings. The appellant had provided evidence from several national patent registers showing that the opposed patent had not lapsed in all contracting states and was still in force. The appellant further submitted that the annuity fees could be paid not only by the patentees but also by a third party. Furthermore, annuity fees could still be validly paid with a surcharge in many of the contracting states and, even if they were not paid with a surcharge in due time, reinstatement periods also had to be considered.

In T 740/15 the board interpreted R. 84(1) EPC to mean that if the opponent files a request for continuation of the opposition proceedings within the given time limit, the scope of discretion of the opposition division provided in R. 84(1) EPC is thereby limited to only one possible lawful decision and this is the continuation of the opposition proceedings. The board noted that this understanding found support in the travaux préparatoires of the EPC 1973.

In T 2492/18 the board set aside the opposition division's decision not to continue the opposition proceedings in accordance with R. 84(1) EPC. The reason given by the opposition division was that no timely request for continuation had been filed. The board noted that the request for continuation had been filed when an appeal was pending and that it would have been within the competence of the board in question to decide upon it. However the appeal had been withdrawn after two months and thus before the board was able to deal with it. From that moment on, the competence to deal with the request was again with the opposition division. The course of events might have led to some confusion, but that did not take away from the fact that a request for continuation had been timely filed and the opposition division had had an obligation to consider it.

In T.1959/15 the board, exercising its discretion under R.84(1)EPC, decided to continue the appeal proceedings. In doing so, it had regard to the appellant's legitimate interest in attempting to reverse the opposition division's rejection of the opposition and to the circumstance that the board's decision on the patent had an ex tunc effect under Art.68 EPC.

1.2.2 Request for continuation of the proceedings made by the patent proprietor

In contrast to the case law cited above, T.708/01 concerns the situation where the patent proprietor had appealed against the decision of the opposition division to revoke the patent. The patent had expired in all the designated contracting states. The board decided that R.60(1)EPC 1973 only applied, if at all, to the extent that the appellants were required to state whether they wished to maintain the appeal. The proprietors could also apply to have the patent maintained in amended form with effect only for the past. In the case in point the appellants stated that they wished to maintain the appeal. The board decided to continue the proceedings.

In T.520/10 the board noted that if a European patent has lapsed in all designated contracting states, opposition proceedings may be continued at the request of the opponent. However, if – as in the present case – the patent proprietor was the appellant, it would be inappropriate to allow one or more of the opponents (respondents) to decide whether the appeal proceedings should be continued. For this reason, R.84(1)EPC had to be applied mutatis mutandis in such opposition appeal proceedings so that it was the patent proprietor who could request that the appeal proceedings be continued. As no such request had been made, the appeal proceedings were terminated. See also T.1733/09, T.1313/10, T.1272/10, T.1825/11, T.2020/14, T.998/15.

In T.2536/10 the board interpreted a mere statement confirming that the patent had been allowed to lapse in all designated states in response to the board's communication asking the appellant (patent proprietor) whether it requested continuation of the appeal proceedings to mean that the appellant did not wish to request continuation. The appeal proceedings were terminated.

2. Death or legal incapacity of an opponent

R.84(2), first sentence, EPC provides that in the event of the death or legal incapacity of an opponent the opposition proceedings may be continued by the EPO of its own motion. This means that, with a view to ensuring expeditious handling of the case, they can be continued even without the participation of the opponent's heirs or legal representatives. There is therefore no need to wait for the heirs to be identified and the inheritance to be accepted or for a legal representative to be appointed (T.1533/07).

The appointment by the courts of an insolvency administrator under German law does not mean that the opponent is legally incapacitated within the meaning of R.84(2), first sentence, EPC. Rather, under German insolvency law the administrator is an ex officio party. By way of a change of party by operation of law, he thus becomes a party to the proceedings, and takes the place of the opponent (T.1533/07, T.917/01).